

Court No. - 34

Case :- WRIT - C No. - 6864 of 2019

Petitioner :- Avanish Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arun Kumar Sharma

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajendra Kumar-IV,J.

1. Heard Sri Arun Kumar Sharma, learned counsel for petitioner, Sri Ashutosh Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondents-2 and 3 and learned Standing Counsel for respondent-1.
2. This writ petition is directed against assessment order dated 15.12.2018 (Annexure-3 to the writ petition).
3. It is submitted on behalf of petitioner that neither in show-cause notice nor in final order, reasons as to how theft was being committed and in what manner assessment was made has been shown.
4. We find that in Clause-6.8 of Electricity Supply Code, 2005 (hereinafter referred to as "Code, 2005") detailed procedure has been prescribed and the same has also been considered by a Division Bench of this Court in **Ashok Kumar and Others vs. State of U.P. and Others 2008 (6) ADJ 607**.
5. Learned counsel appearing for respondents-Electricity Department could not dispute that impugned orders are not in conformity with law laid down in **Ashok Kumar (Supra)** as also procedure prescribed in Clause-6.8 of Code, 2005.
6. In view thereof, writ petition is allowed. Impugned assessment order dated 15.12.2018 is hereby set aside.
7. However, this order shall not preclude respondents from passing fresh order following the above statutory procedure as well as law laid down by this Court in **Ashok Kumar (Supra)**.

Order Date :- 1.3.2019

Siddhant Sahu